



CHAPTER 22.

An Act to provide for the reorganisation and improvement of the fire services of Great Britain, and for purposes connected with the matters aforesaid.

[22nd May 1941.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows :—

1.—(1) The Secretary of State may make regulations providing for the co-ordination, for the period of the present emergency, of all or any of the fire services provided by local authorities or for the unification, in whole or in part, of all or any of those services for that period, whether under his control or otherwise, and for any other matters which appear to him to be necessary or expedient to be provided for with a view to improving the arrangements for fighting fires, and such regulations may in particular, (but without prejudice to the generality of the foregoing words,) make provision for all or any of the matters set out in the Schedule to this Act.

Power to provide by regulations for co-ordination and unification of fire services.

(2) Regulations made under subsection (1) of this section with the consent of the Treasury may require payments to be made to or by any local authority by or to the Secretary of State or any other local authority, and may make provision as to the compensation, if any, to be paid for the use of any property of a local authority by or on behalf of the Crown or any other local authority, and for the withholding of the whole or any part of any grant which would otherwise be payable by the Crown to any local authority, if the Secretary of State is satisfied that that authority have failed to perform, or properly to perform, any duty (whether general or particular) imposed upon them

under this Act or imposed upon them, otherwise than under this Act, in connection with the fighting of fires or the making of provision for facilitating the fighting thereof.

(3) Any regulations made under this Act shall, subject to the provisions of the next succeeding section, have effect notwithstanding anything in any enactment or in any instrument having effect by virtue of any enactment, including any enactment in a local Act, and may, so far as appears to the Secretary of State to be necessary or expedient for the purposes of the regulations, amend or suspend the operation of any enactment, and apply any enactment with or without modification.

Supplemental
provisions.
2 & 3 Geo. 6.
c. 62.
3 & 4 Geo. 6.
c. 20.

2.—(1) Paragraph (d) of subsection (2) and subsection (4) of section one of the Emergency Powers (Defence) Act, 1939, as amended by subsection (2) of section one of the Emergency Powers (Defence) Act, 1940 (which relate to the amendment of Acts by Defence Regulations) shall have effect as if this Act had been passed before the commencement of the last mentioned Act, and subsections (1) and (2) of section eight of the first mentioned Act (which relate to the laying before Parliament of Defence Regulations and the annulment of Defence Regulations) shall apply in relation to regulations under this Act as they apply in relation to Orders in Council containing Defence Regulations.

(2) Any expenses incurred by a Secretary of State or other Minister of the Crown in consequence of the passing of this Act shall be defrayed out of moneys provided by Parliament.

(3) In this Act the expression "local authority" includes a police authority and a joint board or other combination of local authorities, the expression "the period of the present emergency" means the period expiring with the expiration of the Emergency Powers (Defence) Act, 1939, and the expression "fire personnel" means any of the following persons, that is to say,—

1 & 2 Geo. 6.
c. 72.

(a) any member of the London Fire Brigade or of any fire brigade maintained under the Fire Brigades Act, 1938, by a local authority; and

4 & 5 Geo. 6.
c. 15.

(b) any member of the Auxiliary Fire Service; and

(c) any person in the service of the Crown by virtue of the National Service Act, 1941, who is for the time being serving with the Auxiliary Fire Service; and

(d) any other person employed in any such capacity connected with the fighting of fires as may be specified in that behalf in regulations under this section.

Short title and
extent.

3.—(1) This Act may be cited as the Fire Services (Emergency Provisions) Act, 1941.

(2) This Act shall not extend to Northern Ireland.

SCHEDULE.

Section 1.

1. For suspending or modifying all or any of, or adding to, the powers and duties of any local authority in connection with the fighting of fires and the making of provision for facilitating the fighting thereof, whether within the area of that authority or elsewhere, during the period of the present emergency.

2. For requiring any local authority to obey such directions as to acts to be done or not to be done in the exercise or performance of their powers and duties in connection with the matters specified in paragraph 1 of this Schedule as may be given to them during the said period by the Secretary of State or any person authorised in that behalf by or under the regulations.

3. For enabling the Secretary of State or any person authorised in that behalf by or under the regulations to exercise, at any time during the said period, in the name of and on behalf of a local authority any of the powers of that local authority in connection with the said matters, and in particular (but without prejudice to the generality of the foregoing words) to give at any time during the said period to any officer or servant of the local authority any orders in connection with any such matter which could have been given by the local authority.

4. For authorising the use during the said period, by or on behalf of the Crown or any other authority or person, of any property of a local authority acquired or held by them for the purposes of a fire service.

5. For the transfer of fire personnel (with or without their consent) from the service of a local authority to the service of the Crown or any other local authority for the whole or any part of the said period, and for requiring them to serve accordingly, in such place and under such officers and in such rank as may be specified by or under the regulations :

Provided that this paragraph shall not apply to personnel employed part-time or without remuneration so as to require them, without their consent, to serve in any place where they could not have been so required to serve if this Act had not been passed.

6. For regulating the pay, allowances and conditions of service of fire personnel, whether in the service of the Crown or in that of any local authority, during the said period.

7. For preserving, with or without adjustment, the rights of, and of the wives and dependants of, fire personnel transferred under the regulations as respects pensions and gratuities.

8. Without prejudice to the powers conferred by paragraph 3 of this Schedule, for requiring fire personnel, whether in the service of the Crown or not, to obey during the said period the orders of such persons as may be designated in that behalf by or under the regulations.

9. For prescribing for the said period, in relation to fire personnel, a code of offences against discipline, the procedure for dealing with those offences and the punishments which may be imposed therefor.

10. For applying, in relation to fire personnel in the service of the Crown and in relation to the Secretary of State or any other authority or person under whose direction or control such personnel may be, any enactments relating to fire personnel employed by a local authority or to any local authority having functions in connection with the prevention of fires.

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